



PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-84 / Highlands – Assigned Zoning
Date: June 8, 2026

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral June 8, 2026
- Public Services Committee June 15, 2026
- Second reading June 22, 2026
- Public Services Committee July 6, 2026
- Third and final reading July 13, 2026

Planning Commission Recommendation:

The Planning Commission heard this item at their June 1, 2026 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (June 2, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 165 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, ESTABLISHING THE ZONING CLASSIFICATION OF AG - AGRICULTURAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED EAST OF SOUTH GREELEY HIGHWAY AND SOUTH OF THE SWEETGRASS SUBDIVISION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. ARP and Hammond Hardware CO, Old Horse Pasture Inc., and Lummis Livestock Company LLC, are the owners of the below-described real property and have petitioned the Governing Body of the City of Cheyenne to annex the property described herein and to make it a part of the City:

A PARCEL OF LAND LOCATED IN A PORTION OF SECTIONS 13, 14, 22, 23, 24, 26, 27 AND 28 TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF SECTION 24; THENCE ALONG THE SOUTH LINE OF SAID SECTION 24 N89°54'10"W A DISTANCE OF 2644.26 FEET TO THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 24; THENCE CONTINUING ALONG SAID SOUTH LINE N89°45'28"W A DISTANCE OF 2633.83 FEET TO THE SECTION CORNER COMMON TO SECTIONS 23, 24, 25 AND 26; THENCE ALONG THE SOUTH LINE OF SECTION 23 N89°45'29"W A DISTANCE OF 2625.42 FEET TO THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 23 ALSO BEING THE NORTH ONE-QUARTER OF SECTION 26; THENCE ALONG THE NORTH-SOUTH QUARTER LINE OF SAID SECTION 26 S00°24'03"W A DISTANCE OF 2641.16 FEET TO THE CENTER ONE-QUARTER OF SAID SECTION 26; THENCE CONTINUING ALONG SAID NORTH-SOUTH QUARTER LINE S00°24'22"W A DISTANCE OF 2640.83 FEET TO THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 26; THENCE ALONG THE SOUTH LINE OF SAID SECTION 26 N89°46'56"W A DISTANCE OF 2634.26 FEET TO THE SECTION CORNER COMMON TO SECTIONS 26, 27, 34 AND 35; THENCE ALONG THE SOUTH LINE OF SECTION 27 S89°43'49"W A DISTANCE OF 2652.17 FEET TO THE SOUTH ONE QUARTER CORNER OF SAID SECTION 27; THENCE CONTINUING ALONG SAID SOUTH LINE S89°55'09"W A DISTANCE OF 967.89 FEET; THENCE N00°04'43"W A DISTANCE OF 2641.13 FEET TO A POINT ON THE EAST-WEST QUARTER LINE OF SAID SECTION 27; THENCE ALONG SAID EAST-WEST QUARTER LINE S89°46'40"W A DISTANCE OF 1671.52 FEET TO THE WEST ONE-QUARTER CORNER OF SAID SECTION 27; THENCE ALONG THE EAST-WEST QUARTER LINE OF SECTION 28 AND THE NORTHERLY BOUNDARY OF LOT 1, BLOCK 2 OF BISON BUSINESS PARK, 3RD FILING; S89°51'57"W A DISTANCE OF 4821.91 FEET; THENCE N00°08'00"W A DISTANCE OF 908.13 FEET; THENCE N43°37'51"E A DISTANCE OF 2425.67 FEET TO A POINT ON THE NORTH LINE OF SAID SECTION 28; THENCE ALONG SAID NORTH LINE S89°50'11"E A DISTANCE OF 3140.60 FEET TO THE SECTION CORNER COMMON TO SECTIONS 21, 22, 27 AND

28; THENCE ALONG THE WEST LINE OF SAID SECTION 22 N00°23'09"E A DISTANCE OF 5283.48 FEET TO THE SECTION CORNER COMMON TO SECTIONS 15, 16, 21 AND 22; THENCE ALONG THE NORTH LINE OF SECTION 22 N89°35'28"E A DISTANCE OF 2667.89 FEET TO THE NORTH ONE-QUARTER CORNER OF SAID SECTION 22; THENCE CONTINUING ALONG SAID NORTH LINE S89°37'51"E A DISTANCE OF 2664.05 FEET TO THE SECTION CORNER COMMON TO SECTIONS 14, 15, 22 AND 23; THENCE ALONG THE NORTH LINE OF SAID SECTION 23 S89°49'33"E A DISTANCE OF 2640.32 FEET TO THE ONE-QUARTER CORNER COMMON TO SECTIONS 14 AND 23; THENCE ALONG THE NORTH-SOUTH QUARTER LINE OF SAID SECTION 14 N00°18'41"E A DISTANCE OF 1559.64 FEET TO A POINT ON A LINE PARALLEL WITH AND 20.00 FEET SOUTHERLY OF THE EXISTING FENCE LINE, AS PRESENTLY LOCATED; THENCE ALONG SAID SOUTHERLY LINE N88°46'28"E A DISTANCE OF 2639.23 FEET TO A POINT THE EAST LINE OF THE SOUTHEAST QUARTER OF SAID SECTION 14; THENCE ALONG SAID EAST LINE N00°23'44"E A DISTANCE OF 1017.94 FEET TO A POINT ON THE EAST-WEST QUARTER LINE OF SECTION 13; THENCE ALONG SAID EAST-WEST QUARTER LINE S89°55'50"E A DISTANCE OF 5227.34 FEET TO THE EAST LINE OF SAID SECTION 13; THENCE ALONG SAID EAST LINE S00°02'48"E A DISTANCE OF 2621.08 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 13; THENCE ALONG THE EAST LINE OF SAID SECTION 24 S00°02'46"E A DISTANCE OF 2621.21 FEET TO THE EAST ONE-QUARTER CORNER OF SAID SECTION 24; THENCE CONTINUING ALONG SAID EAST LINE S00°17'30"W A DISTANCE OF 2681.83 FEET MORE OR LESS TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 3459.99 ACRES MORE OR LESS AND SUBJECT TO EASEMENTS OF RECORD.

Section 2. That Section 2.2.8 of the Cheyenne Unified Development Code (UDC) provides standards and procedures for zoning districts established on land or property currently without a City zone assignment, including land being annexed to the city.

Section 3. That on June 1, 2026, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as AG - Agricultural.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map

amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



CITY OF
CHEYENNE
— PLANNING &
DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION

JUNE 1, 2026

STAFF REPORT

FILE: PUDC-26-84: Highlands – Assigned Zoning

LOCATION: East of South Greeley Hwy and south of the Sweetgrass Development.

REQUEST: Assigning City zones to properties proposed for annexing.

ANNEXATION APPLICANT: ARP and Hammond Hardware CO, Old Horse Pasture Inc., and Lummis Livestock Company LLC

OWNER: ARP and Hammond Hardware CO, Old Horse Pasture Inc., and Lummis Livestock Company LLC

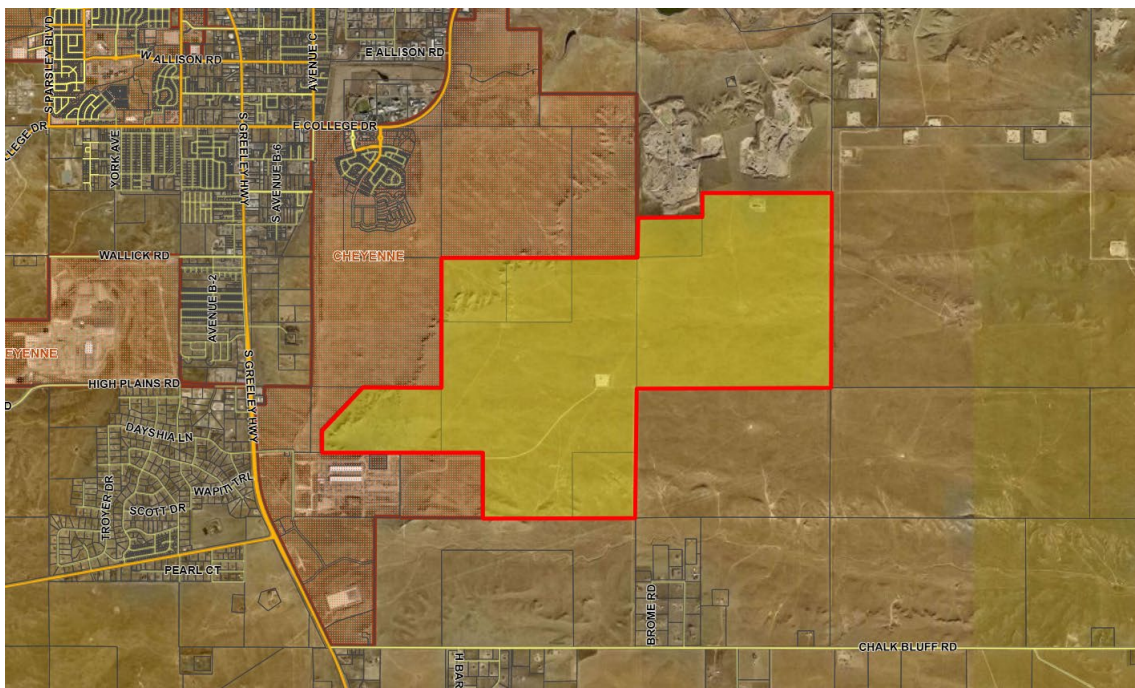
CURRENT ZONING: County LU

PROPOSED ZONING: AG

FUTURE LAND USE: Agricultural/Rural

PURPOSE: To establish a City zoning district concurrent with annexation.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land east of South Greeley Highway and south of the Sweetgrass Development to AG - Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The applicant has petitioned for roughly 3,459.99 acres of land to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on allowed uses, current uses, or surrounding City zones. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone. The applicant is requesting a different City zone upon annexation. The proposed zoning by the applicant was reviewed under PUDC-26-85.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones.

Zoning shall be assigned a City zone based on:

- Permitted uses,**
- Uses that could reasonably be anticipated for conditional use approval under the current zoning,**
- Current uses, or**
- Surrounding City zoning,**

as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property.

Through the reviewing of the annexation petition area, the assigned zoning is fairly straightforward.

The land is currently zoned LU – Land Use within the County. The City zones adjacent to this area are AG – Agricultural, BP – Business Park, and PUD – Sweetgrass Planned Unit Development. The surrounding County zone is also the LU zone. The land is currently used for grazing and is all vacant. Surrounding uses are a data center, quarry, oil fields, and very little residential. Other lands surrounding this area are vacant. Due to the size of the land and the surrounding lands, Staff believes that the **AG – Agricultural** zone is the most analogous zone for this land. The AG zone is also a holding zone which will allow the land to be rezoned more easily in the future as the land develops.

This assigned zoning **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

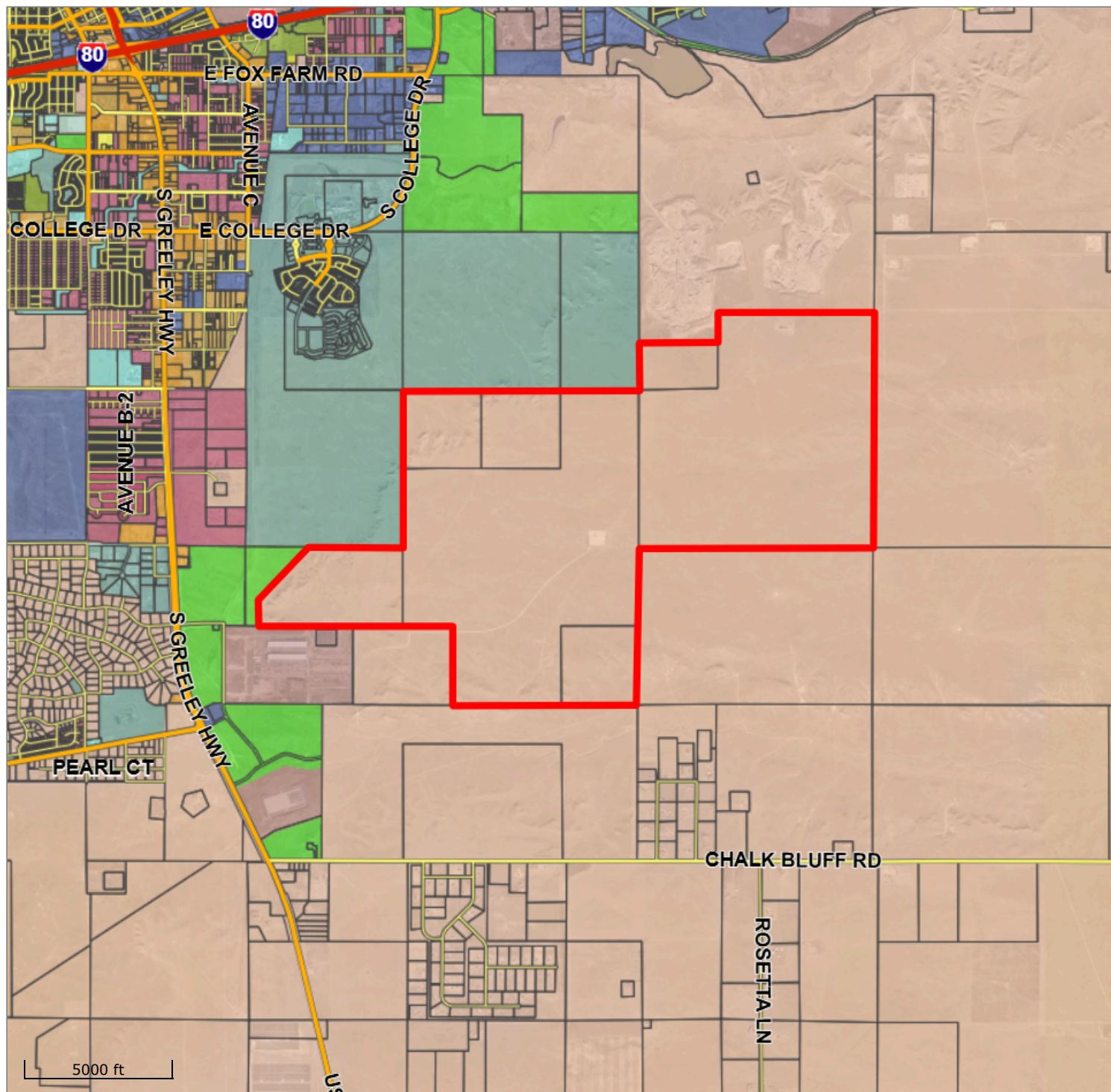
STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land east of South Greeley Highway and south of the Sweetgrass Development to AG - Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map

Laramie County Wyoming MapServer



- Interstate
- Major Road
- Imps only
- A-1
- A-2
- AD
- AG
- AR
- CB
- CBD
- HI
- HR
- LI
- LR
- LU
- MR
- MU
- MUB
- MUE
- MUR
- NB
- NR-2
- NR-3
- P
- PUD
- SS
- URLD
- URMD
- URHD
- X



This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, and makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.
printed 5/22/2026